

Yogesh S/O. Kishore Dandekar vs Zilla Parishad, Wardha Thr. Its Chief ... on 8 April, 2026

Author: M. S. Jawalkar

Bench: M. S. Jawalkar

2026:BHC-NAG:5746-DB

911-WP4264.23.25

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR.

WRIT PETITION NO. 4264 OF 2023

PETITIONER : Yogesh S/o Kisohre Dandekar, Aged about
25 years, R/o. Datta Ward, Arvi, Tahsil
Arvi, Distt.Wardha.

-Versus-

RESPONDENT : Zilla Parishad, Wardha, through its Chief
Executive Officer, Wardha.

Mr.N.R.Saboo, Adv. for the petitioner.
Mr. N.M.Kolhe, Adv. for the respondent.

CORAM: SMT. M. S. JAWALKAR &
NANDESH S. DESHPANDE, JJ.
DATE : 8TH APRIL, 2026

JUDGMENT (Per : Smt. M. S. Jawalkar, J.)

Heard.

2. Rule. Rule is made returnable forthwith. Heard finally with the consent of the learned counsel for the parties.

3. The present petition is filed for quashing and setting aside the impugned communication dated 16/05/2023 issued by the respondent-Zilla Parishad Wardha.

4. The father of the petitioner, who was permanent employee of the respondent, expired on 23/03/2003 while working on the post KHUNTE 911-WP4264.23.25-J.odt of driver. At the relevant time, the petitioner was minor, around four years old. He attained the age of majority on

15/01/2017. As he was having requisite qualification, the petitioner was applied for the appointment on compassionate ground within a period of one month after he attained the age of majority, i.e. on 02/02/2017. Thereafter, he made representations on 15/04/2017, 03/05/2017 reiterating his request. It is pointed out that the mother of the petitioner immediately after the death of her husband applied for appointment on compassionate ground. The petitioner has also made a request even before her son's completion of 18 years of age that as soon as he became major, he may be considered for appointment on compassionate ground.

5. As the respondent was insisting for succession certificate, the first wife of the husband applied for the same, wherein the mother of the petitioner was non-applicant No.1. The said matter was settled as per the terms of compromise on 07/12/2007. It appears that vide communication dated 29/09/2012, the claim of the mother of the petitioner turned down on the ground that she being second wife and the second marriage is not valid as per Hindu Law. By this communication, the claim of the petitioner also came to be rejected on the ground that he is the son of second wife. We are of the considered opinion that the reason given for rejecting the claim of the petitioner is apparently erroneous.

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6. The learned counsel for the petitioner relied on the judgment in Union of India v. V.R.Tripathi, 2018 SCC OnLine 3097, wherein the Hon'ble Apex Court held in paras-14 and 15 as under:

"14. The real issue in the present case, however, is whether the condition which has been imposed by the circular of the Railway Board under which compassionate appointment cannot be granted to the children born from a second marriage of a deceased employee (except where the marriage was permitted by the administration taking into account personal law, etc) accords with basic notions of fairness and equal treatment, so as to be consistent with Article 14 of the Constitution. While answering this issue, it would be necessary to advert to the provisions of Section 16 of the Hindu Marriage Act, 1955 which provide thus:

"16. Legitimacy of children of void and voidable marriages.-(1) Notwithstanding that marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act. (2) Where a decree of nullity is granted in respect of a voidable marriage under section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity. (3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled

by a KHUNTE 911-WP4264.23.25-J.odt decree of nullity under section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

15. In sub-section (1) of Section 16, the legislature has stipulated that a child born from a marriage which is null and void under Section 11 is legitimate, regardless of whether the birth has taken place before or after the commencement of Amending Act 68 of 1976. Legitimacy of a child born from a marriage which is null and void, is a matter of public policy so as to protect a child born from such a marriage from suffering the consequences of illegitimacy. Hence, though the marriage may be may be null and void, a child who is born from the marriage is nonetheless treated as legitimate by sub-section (1) of Section 16. One of the grounds on which a marriage is null and void under Section 11 read with clause (i) of Section 5 is that the marriage has been contracted when one of the parties had a spouse living at the time of marriage. A second marriage contracted by a Hindu during the subsistence of the first marriage is, therefore, null and void. However, the legislature has stepped in by enacting Section 16(1) to protect the legitimacy of a child born from such a marriage. Sub-section (3) of Section 16, however, stipulates that such a child who is born from a marriage which is null and void, will have a right in the property only of the parents and none other than the parents."

7. On perusal of section 16 of the Hindu Marriage Act, it is clear that any marriage is declared null and void under section 11, the child of such marriage would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before KHUNTE 911-WP4264.23.25-J.odt or after the commencement of the Marriage Laws (Amendment) Act, 1976, and whether or not a decree of nullity is granted in respect of that marriage under the Hindu Marriage Act. In view of this provision and the judgment referred above, the impugned communication dated 16/05/2023 issued by the respondent-Zilla Parishad is liable to be quashed and set aside. Accordingly, the petition is allowed.

8. The impugned communication dated 16/05/2023 issued by the respondent-Zilla Parishad Wardha to the extent of the petitioner is hereby quashed and set aside.

9. The respondent-Zilla Parishad is hereby directed to include the name of the petitioner in the list of persons to be appointed on compassionate ground, if he is otherwise eligible. This exercise would be conducted within a period of two weeks.

10. Rule is made absolute in the above terms. No costs.

(NANDESH S. DESHPANDE, J)

(SMT. M. S. JAWA

Signed by: Mr. G.S. Khunte KHUNTE
Designation: PS To Honourable Judge
Date: 10/04/2026 18:43:25